

1 **SENATE FLOOR VERSION**

2 February 25, 2025

3 COMMITTEE SUBSTITUTE
4 FOR

5 SENATE BILL NO. 656

By: Paxton

6
7 An Act relating to the State Election Board; amending
8 26 O.S. 2021, Sections 2-101, 2-101.1, 2-101.2, 2-
9 101.3, 2-101.6, and 2-101.7, which relate to the
10 number of members, appointment of members, filling of
11 vacancies, salary of the Secretary of the State
12 Election Board, and terms of officers; modifying
13 number of Board members after certain time; modifying
14 appointment authority for members; directing
15 membership appointments; establishing quorum and
16 voting requirements; requiring certain notarized
17 lists be provided to the Governor; defining term;
18 providing timeline of appointments; directing manner
19 to fill vacancies; clarifying language; modifying
20 appointing authority of the Secretary of the State
21 Election Board; requiring Senate confirmation;
22 authorizing assistant secretary to assume duties upon
23 certain vacancy; directing manner to fill vacancy;
24 requiring Board to establish salary for Secretary;
setting certain date for meeting; updating statutory
language; making language gender neutral; repealing
26 O.S. 2021, Section 2-101.5, which relates to chair
and vice chair of State Election Board; and providing
an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 26 O.S. 2021, Section 2-101, is
amended to read as follows:

1 Section 2-101. ~~The~~ A. Until July 1, 2027, the State Election
2 Board shall be composed of three (3) members and two (2) alternate
3 members, each of whom shall be appointed by the Governor upon advice
4 and consent of the Senate. An alternate shall serve on the State
5 Election Board at any meeting that a member for whom the person is
6 an alternate is unable to attend. Any person serving as a member or
7 alternate member of the State Election Board on the effective date
8 of this act shall continue to serve in his or her position until
9 July 1, 2027.

10 B. Beginning July 1, 2027, the State Election Board shall be
11 composed of five (5) members, each of whom shall be appointed
12 pursuant to the provisions of Section 2-101.1 of this title.

13 SECTION 2. AMENDATORY 26 O.S. 2021, Section 2-101.1, is
14 amended to read as follows:

15 Section 2-101.1. A. Beginning July 1, 2027, the State Election
16 Board shall consist of the following members:

17 1. One member who is a registered voter of this state appointed
18 by the President Pro Tempore of the Senate;

19 2. One member who is a registered voter of this state appointed
20 by the Speaker of the House of Representatives; and

21 3. Three members appointed by the Governor, subject to the
22 advice and consent of the Senate, as follows:

23 a. one member from the list provided pursuant to
24 subsection C of this section who is a registered voter

1 of the political party with the largest number of
2 registered voters in this state based on the latest
3 January 15 voter registration report,

4 b. one member from the list provided pursuant to
5 subsection C of this section who is a registered voter
6 of the political party with the second largest number
7 of registered voters in this state based on the latest
8 January 15 voter registration report, and

9 c. one member who is a registered voter of this state but
10 who is not a registered voter of either of the two
11 political parties with the largest number of
12 registered voters in this state.

13 B. A majority of the State Election Board shall constitute a
14 quorum, and action taken by a majority of members voting at any
15 meeting at which a quorum is present shall be the action of the
16 Board.

17 C. 1. No later than ~~March 1, 2015~~ January 31, 2027, and every
18 four (4) years thereafter, the state central committee of the
19 recognized political ~~party~~ parties having the largest and second
20 largest number of registered voters, based upon the latest January
21 15 registration report, shall submit to the Governor a list of ten
22 ~~(10)~~ nominees for membership on the State Election Board, and the
23 ~~state central committee of the political party having the second~~
24 ~~largest number of registered voters, based upon the latest January~~

1 ~~15 registration report, shall submit to the Governor a list of ten~~
2 ~~(10) nominees for membership on the State Election Board. The list~~
3 ~~of nominees shall be signed by a majority of the members of the~~
4 ~~state central committee, whose signatures shall be notarized by a~~
5 ~~notary public.~~

6 ~~The Governor shall be confined to the lists of names submitted~~
7 ~~by each party and shall appoint two (2) members and one (1)~~
8 ~~alternate member of the State Election Board from one political~~
9 ~~party and one (1) member and one (1) alternate member of the State~~
10 ~~Election Board from the other political party.~~

11 2. For the purposes of this title, a political party's state
12 central committee shall consist of the party's chair, vice chair,
13 national committeeman and national committeewoman, or the equivalent
14 position under the party's rules.

15 3. Appointments shall be made by the Governor and submitted to
16 the Senate no later than ~~March 15, 2015~~ March 1, 2027, and every
17 four (4) years thereafter. ~~Provided, for appointments to be made in~~
18 ~~2011, such submissions shall be provided to the Governor within five~~
19 ~~(5) business days of the effective date of this act and such~~
20 ~~appointments shall be made by the Governor within ten (10) business~~
21 ~~days of the effective date of this act.~~

22 4. Appointments shall be made by the President Pro Tempore of
23 the Senate and the Speaker of the House of Representatives no later
24 than June 1, 2027, and every four (4) years thereafter.

1 D. The terms of the State Election Board members appointed in
2 the manner described in this section shall begin on July 1, 2027,
3 and shall be for a period of four (4) years. Provided, a member
4 whose term has expired shall continue to serve until a successor is
5 lawfully appointed and confirmed, if applicable.

6 SECTION 3. AMENDATORY 26 O.S. 2021, Section 2-101.2, is
7 amended to read as follows:

8 Section 2-101.2. In the event of a vacancy of a State Election
9 Board member created by death ~~or~~, removal, change of political party
10 affiliation, resignation, or any other reason provided by law, the
11 vacancy shall be filled within thirty (30) days in the same manner
12 as the member was appointed. If the Governor was the appointing
13 authority, he or she shall, within thirty (30) days after such
14 vacancy occurs, appoint, ~~upon~~ with the advice and consent of the
15 Senate, a member of the same party to fill the unexpired term from a
16 list of five (5) nominees submitted by the party's state central
17 committee within fifteen (15) days after ~~said~~ the vacancy occurs.
18 If the vacancy occurs for the member who is not affiliated with
19 either of the two political parties with the largest number of
20 registered voters in this state, the Governor shall make the
21 appointment, with the advice and consent of the Senate, from the
22 registered voters in this state.

23 SECTION 4. AMENDATORY 26 O.S. 2021, Section 2-101.3, is
24 amended to read as follows:

1 Section 2-101.3. ~~Should~~ If a state central committee ~~fail~~ fails
2 to submit nominees in the manner and within the period prescribed,
3 the Governor shall make ~~his~~ the appointment from within the ranks of
4 ~~said~~ the party.

5 SECTION 5. AMENDATORY 26 O.S. 2021, Section 2-101.6, is
6 amended to read as follows:

7 Section 2-101.6. ~~The~~ A. 1. Until January 1, 2026, the
8 Secretary of the Senate shall serve as Secretary of the State
9 Election Board at a salary established annually by the Legislature.
10 ~~However, the~~ On January 1, 2026, the position of Secretary of the
11 State Election Board shall be vacant. To fill such vacancy, a
12 person shall be appointed by the State Election Board with the
13 advice and consent of the Senate to serve the remainder of the term
14 vacated pursuant to this subsection.

15 2. Beginning on January 1, 2027, and every four (4) years
16 thereafter, the Secretary of the State Election Board shall be
17 appointed by the State Election Board with the advice and consent of
18 the Senate for a term of four (4) years.

19 B. 1. In the event of a vacancy in the position of the
20 Secretary of the State Election Board, the assistant secretary of
21 the State Election Board employed by the Secretary as authorized
22 pursuant to Section 2-107 of this title shall serve as Acting
23 Secretary and shall perform the duties of the Secretary until the
24 vacancy is filled in the manner provided by this section.

1 2. To fill a vacancy in the position of the Secretary of the
2 State Election Board, a person shall be appointed by the State
3 Election Board with the advice and consent of the Senate.

4 C. The Secretary of the State Election Board shall not be a
5 member of the State Election Board. Beginning on January 1, 2026,
6 the salary of the Secretary shall be established by the Board.

7 SECTION 6. AMENDATORY 26 O.S. 2021, Section 2-101.7, is
8 amended to read as follows:

9 Section 2-101.7. ~~On the first Monday in April, 1983~~ No later
10 than July 15, 2027, and every four (4) years thereafter, the State
11 Election Board shall meet upon the call of the Secretary of the
12 State Election Board to seat newly appointed board members and to
13 elect a Chairman and Vice Chairman chair and vice chair. ~~Terms of~~
14 ~~the Chairman, Vice Chairman and member shall begin at that time.~~

15 SECTION 7. REPEALER 26 O.S. 2021, Section 2-101.5, is
16 hereby repealed.

17 SECTION 8. This act shall become effective November 1, 2025.

18 COMMITTEE REPORT BY: COMMITTEE ON JUDICIARY
19 February 25, 2025 - DO PASS AS AMENDED BY CS
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